

1 AN ACT relating to sexual assault nurse examiners.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 211 IS CREATED TO
4 READ AS FOLLOWS:

5 **(1) The Cabinet for Health and Family Services shall employ a health professional**
6 **as a statewide sexual assault nurse examiner (SANE) coordinator to support the**
7 **logistical operations of the SANE Program and individual SANEs credentialed**
8 **under Section 2 of this Act.**

9 **(2) The cabinet shall establish a description, essential duties, and responsibilities of**
10 **the SANE coordinator position that shall include but not be limited to:**

11 **(a) Identifying and recruiting potential SANEs across the state;**

12 **(b) Organizing and facilitating comprehensive SANE training programs;**

13 **(c) Establishing and maintaining relationships with key stakeholders such as**
14 **hospitals, law enforcement agencies, rape crisis advocates, and others; and**

15 **(d) Increasing SANE Program collaboration by creating opportunities for**
16 **networking and building rapport among SANE training programs.**

17 **(3) The cabinet shall collaborate with the Kentucky Hospital Association, the**
18 **Kentucky Board of Nursing, the Sexual Assault Response Team Advisory**
19 **Committee, and any other entities deemed appropriate by the cabinet, to develop a**
20 **statewide strategic plan that utilizes a regional model to ensure SANE coverage**
21 **for all Kentucky hospitals. The strategic plan shall be submitted to the Legislative**
22 **Research Commission for referral to the Interim Joint Committee on Health**
23 **Services by December 1, 2026.**

24 **(4) The cabinet shall develop a state registry of SANEs and make it accessible from**
25 **the cabinet's website by registered SANEs and Kentucky hospitals. The registry**
26 **shall be operational by December 1, 2026.**

27 ➔Section 2. KRS 314.142 is amended to read as follows:

- 1 (1) The Kentucky Board of Nursing shall promulgate administrative regulations
2 pursuant to KRS Chapter 13A to create a Sexual Assault Nurse Examiner Program.
3 These administrative regulations shall address, at a minimum:
- 4 (a) Educational requirements for sexual assault nurse examiners and statewide
5 standards for provision of the education;
 - 6 (b) The application process through which registered nurses who submit
7 documentation of required education and clinical experience and who remit
8 the designated application fee may apply to the board to be credentialed as a
9 "Sexual Assault Nurse Examiner";
 - 10 (c) Continuing education requirements for maintenance of the sexual assault
11 nurse examiner credential;
 - 12 (d) Methods of monitoring overall program implementation; and
 - 13 (e) Procedures for obtaining input from the Sexual Assault Response Team
14 Advisory Committee established under KRS Chapter 403 prior to proposing
15 amendments to any provision of the administrative regulations promulgated
16 under this section or KRS 314.131.
- 17 (2) Any person in this state who holds a credential as a Sexual Assault Nurse Examiner
18 as defined in KRS 314.011(14) shall have the right to use the title "Sexual Assault
19 Nurse Examiner" and the abbreviation "SANE". No other person shall assume the
20 title or use the abbreviation or any other words, letters, signs, or figures to indicate
21 that the person using the same is a Sexual Assault Nurse Examiner.
- 22 **(3) The board shall notify each newly registered SANE that the state registry of**
23 **SANEs is available on the cabinet's website as required in Section 1 of this Act.**